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Case Number: 24TRCV03909 Hearing Date: September 15, 2026 Dept: B

Moving Parties: Defendant ABM Industry

Groups, LLC

Responding

Party: Plaintiff Claudia Fimbres

Motion

for Summary Judgment, or in the alternative, Summary Adjudication

The Court considered the moving, opposition, and reply papers.

RULING

The motion for summary judgment is GRANTED.

BACKGROUND

On November

19, 2024, plaintiff Claudia Fimbres filed a complaint against Forum Entertainment LLC for premises liability and general negligence as to an incident on April 8, 2023 based on a slip and fall on stairs.

On

December 26, 2024, Forum Entertainment LLC filed a cross-complaint against ABM Services, Inc. for apportionment of fault, indemnification, declaratory relief, and attorneys' fees.

On

April 11, 2025, plaintiff filed an amendment to the complaint designating ABM Industry Groups, LLC.

On May
30, 2025, Forum Entertainment LLC filed a request for dismissal as to its cross-complaint.

On May
12, 2026, the Court granted defendant Forum Entertainment LLC's motion for summary judgment.

LEGAL AUTHORITY

The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute."

Aguilar v. Atlantic Richfield Co.

(2001) 25 Cal. 4th 826, 843. "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." Adler v. Manor Healthcare Corp. (1992) 7 Cal. App. 4th 1110, 1119.

"On a
motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal. App. 4th 1510, 1519. A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." CCP § 437c(p)(2). "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." CCP § 437c(p)(2).

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” *Avivi v. Centro Medico Urgente*

Medical Center (2008) 159 Cal. App. 4th 463, 467; CCP §437c(c).

OBJECTIONS

Defendant's

objection Nos. 1-4 to plaintiff's deposition are OVERRULED.

Defendant's

objection No. 1 to plaintiff's responses to ABM's special interrogatories is SUSTAINED.

Defendant's

objections to Rivera's declaration are ruled on as follows: OVERRULED as to No. 1 and SUSTAINED as to Nos. 2-17.

DISCUSSION

Defendant ABM Industry

Groups, LLC requests summary judgment in its favor and against plaintiff on the ground that no triable issue of material fact exists and defendant is entitled to summary judgment as a matter of law.

The complaint alleges

that on April 8, 2023, plaintiff was a guest at Kia Forum for a concert hosted at defendants' venue, which was owned and/or controlled by defendants. As she was walking down the stairs after the concert ended, she suddenly fell due to a transitory substance – an unsafe condition which had existed for a sufficient period of time that defendants knew or should have known of it. In spite of such actual or constructive knowledge, defendants failed to correct such unsafe condition, failed to protect plaintiff from it, and failed to warn plaintiff.

Plaintiff filed an

amendment on April 11, 2025 designating moving defendant ABM Industry Groups, LLC as Doe 1.

“In

order to state a cause of action for negligence, plaintiff must state facts showing that defendant had a duty to plaintiff, that the duty was breached by negligent conduct, and that the breach was the cause of damages to the plaintiff.” Brooks v. Eugene Burger Management Corp. (1989) 215 Cal. App. 3d 1611, 1619. The elements of premises liability mirror those for negligence: a legal duty of care, breach of that duty, and proximate cause resulting in injury. Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158. “Premises liability is grounded in the possession of the premises and the attendant right to control and manage the premises; accordingly, mere possession with its attendant right to control conditions on the premises is a sufficient basis for the imposition of an affirmative duty to act.” Id.

(citations omitted). “Those who own, possess, or control property generally have a duty to exercise ordinary care in managing the property in order to avoid exposing others to an unreasonable risk of harm.” Annocki v. Peterson Enterprises, LLC (2014) 232 Cal. App. 4th 32, 37.

The

parties do not dispute that at no time during the incident did ABM own or lease the Kia Forum. Defendant’s Separate Statement of Undisputed Material Facts (“DUMF”) 3. The area of the Kia Forum where the stage is and the surrounding seating area for the audience constitute the “inner bowl” or “seating bowl.” DUMF 5. Plaintiff’s alleged fall occurred within the “inner bowl” of the Kia Forum. DUMF 9. Plaintiff’s alleged fall occurred immediately following the final concert performance as plaintiff and others were attempting to leave the Kia Forum. DUMF 10. Prior to plaintiff’s alleged fall, plaintiff did not notice any hazardous or dangerous condition on the stairs. DUMF 11. Prior to plaintiff’s alleged fall, she did not report any hazardous or dangerous condition on the stairs to any ABM employees. DUMF 12. Plaintiff does not know for how long the allegedly hazardous or dangerous condition was on the stairs where she allegedly fell. DUMF 16. Plaintiff is not aware of any third party or other concert goer, prior to the incident, reporting any alleged hazardous or

dangerous condition on the stairs where she allegedly fell. DUMF 17.

Defendant

argues that it owed no duty to plaintiff regarding the condition of the premises that ABM did not own, lease, or control. Defendant asserts that its sole involvement with the Kia Forum was the provision of janitorial services, which were defined and limited by the scope of the Janitorial Services Agreement ("JSA"), which includes a "Scope of Work" addendum. As to the "inner bowl" where plaintiff allegedly fell, the JSA states: "Cleaning personnel shall remain in their assigned areas at all times during the Event, unless otherwise advised by MSG. The parties acknowledge and agree that cleaning services will not be provided in the inner bowl of the Forum except upon call or request of the [Forum] command post." See Def.'s Ex. E at 13. Defendant Forum's PMQ testified during his deposition that the provision of the JSA mandating ABM not to clean the inner bowl during events unless otherwise instructed is "clear in terms of what it is saying." McNeff Depo. at 42. Defendant asserts that the "command post" was not staffed by any ABM personnel on the date of the incident. Id. at 19.

Defendant

also argues that even if it did owe a duty, ABM did not breach any duty of care. Defendant asserts that there is no evidence ABM was called upon or requested to perform cleaning services in the area of plaintiff's alleged fall during the event. Defendant further argues that there is no evidence ABM had, prior to the incident, any knowledge of the alleged dangerous or hazardous condition on the stairs where plaintiff allegedly fell or that the stairs had any allegedly hazardous or dangerous condition on them when plaintiff first walked up to her seat prior to the event. Additionally, plaintiff admitted that she has no facts supporting how long the "transitory substance" was on the floor prior to the incident. Defendant also presents evidence that the slip resistance of the stairway, in both dry and wet conditions, is within the acceptable range of industry standards such that the stairway did not present a slipping hazard whether dry or wet.

In

opposition, plaintiff argues that ABM owed plaintiff a duty because it voluntarily undertook to diligently monitor stairwells, citing to the Scope of Work addendum and the section as to "Core Cleaning Services." Plaintiff also cites to the deposition of McNeff, Forum's PMQ, who testified that ABM staff were expected to "make an effort to go up the stairs just to check on things on their own, time

permitting” (McNeff Depo. at 48) and its retained expert Enrique Rivera, CXLT who states in his declaration that defendant ABM’s assigned areas encompassed the entire venue, including both the inner and outer bowl, and that ABM personnel “were expected to monitor and check the stairways when able” (Rivera Dec. ¶¶ 14-15. Plaintiff also argues that ABM had a duty based on “functional control,” as it staffed dozens of cleaners in and around the bowl before, during, and immediately after the event and it undertook the specific function of checking the stairwells.

Plaintiff

further argues that there are triable issues of material fact as to breach. Plaintiff contends that ABM’s own discovery responses establish the absence of any documented inspection and that a reasonable jury could find that no adequate inspection system existed at all. Plaintiff cites also to Forum’s PMQ McNeff’s deposition testimony where he states that he keeps no document that is filled out that states that any walkthrough, inspection, or cleanup verification occurred and that there were no vendor’s employees assigned to stairs in the inner bowl that night. As for constructive notice, plaintiff argues that the scale of ABM’s post-event cleanup operation, a nearly 90-person crew mobilized within an hour of the incident to address bowl, terrace, and concourse conditions, is itself evidence that spills and similar hazards in the seating bowl are a “recurring, expected condition” of the venue’s operations. As to causation, plaintiff argues that there are triable issues of material fact as plaintiff presents retained expert Rivera’s declaration refuting Braun’s testing measures as measuring the “wrong thing” as a contaminated surface, not the bare stairway, caused plaintiff’s fall.

Rivera also opines that the presence of a contaminant was foreseeable and consistent with recognized industry standards on slip and fall hazards and that “human-factors” research explains why plaintiff would not have seen the hazard.

In

reply, defendant reiterates its argument that summary judgment is proper because plaintiff cannot prove that ABM had a duty to inspect the stairs, or actual or constructive notice of the spill, or causation.

The Court finds that plaintiff cannot succeed on her claims because she cannot prove the element of duty. It is undisputed that defendant neither owned

nor possessed the Kia Forum, where plaintiff fell. Defendant presented evidence that its sole involvement with the Kia Forum was the provision of janitorial services as provided by the JSA. The JSA explicitly provides that defendant was not to provide janitorial services in the inner bowl – which is where plaintiff fell – during events unless instructed by the Forum: “The parties acknowledge and agree that cleaning services will not be provided in the inner bowl of the Forum except upon call or request of the [Forum] command post.” Def.’s Ex. E at 13. It is undisputed that there was no call or request from the command post to defendant to clean the incident stairway during the event. Defendant has thus met its burden of providing affirmative evidence that plaintiff cannot satisfy the element of duty, and the burden shifts to plaintiff to raise a triable issue of material fact.

Plaintiff has not met her burden. Plaintiff argues that defendant owed her a duty because (1) through the JSA, defendant voluntarily undertook to diligently monitor stairwells at the Kia Forum; and (2) separate and apart from the JSA, defendant exercised actual control of the area where plaintiff fell.

First, defendant did not undertake a duty to diligently monitor stairwells during events at the Kia Forum. The JSA covers “Event Services” related to services provided during events, as well as “Core Cleaning Services” that occurred daily, when there were no events.

Def.’s Ex. D at 1. The contract clearly divides services required under “Core Cleaning Services” from “Event Operation” services. Def.’s Ex. E at 12-13. Defendant was only required to “[d]iligently monitor stairwells” as part of its “Core Cleaning Services,” which are its daily, non-event services.

Id. at 12. For “Event Operation” services, however, the JSA omits this same language. See id. at 12-13. In any event, the JSA differentiates between

“stairwells and stair towers” on the one hand, and “seating areas/steps/aisles” on the other. See id. at 13-14. Plaintiff does not allege her incident occurred in a stairwell, she alleges it occurred on the steps adjacent to the seating area.

Plaintiff argues the testimony of Timothy McNeff, Forum Entertainment’s PMQ, supports its argument. McNeff testified that Forum Entertainment

expected defendant's staff to "make an effort to go up the stairs just to check on things on their own, time permitting."

Plaintiff's Ex. 1 at 48. This

does not raise a triable issue of material fact. "The interpretation of a contract is a question of law unless the interpretation turns upon the credibility of extrinsic evidence. The clear language

of a provision governs unless it leads to an absurdity. The undisclosed belief or intention of a party is irrelevant in the absence of fraud or mistake." *Meyers v. Guarantee Sav. & Loan Assn.* (1978) 79 Cal.App.3d 307, 311 (citations omitted). The JAS is not ambiguous, and Forum Entertainment's subjective expectation of what services defendant would perform is not objectively reasonable in light of the contract. And because contract interpretation is a question of law, plaintiff's expert is not qualified to opine on the matter.

Second, plaintiff's argument that defendant owed her a duty independent of the JAS is not supported.

Plaintiff argues that defendant exercised control of the inner bowl by staffing cleaners for events, assigning staff to specific areas, and undertaking to check stairwells. All of those actions arose from the JAS.

Accordingly, plaintiff has failed to raise a triable issue of material fact on the element of duty.

ORDER

The motion for summary judgment is GRANTED.

Moving party shall submit a proposed judgment.

Moving party is ordered to give notice of ruling.